

Brajnandan Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 April 2019 · WRIT - C No. 14702 of 2019 · **Writ dismissed with liberty to avail Clause 6.5.**

HEADNOTE

A writ petition that only disputes the correctness of an electricity bill is not entertained. The consumer must raise and resolve that dispute under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Division Bench dismissed the petition with liberty to take that recourse.

FACTUAL SUMMARY

Brajnandan Singh filed Writ-C No. 14702 of 2019 in the High Court of Judicature at Allahabad against the State of Uttar Pradesh and another, seeking writ relief in respect of an electricity bill whose correctness he disputed. Counsel for the petitioner, the Chief Standing Counsel, and counsel for the distribution licensee were heard. The order discloses no connection number, billed amount, billing period, meter allegation, or assessment. The only controversy placed before the Court was the correctness of the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-under-clause-6.5

HOLDING

A dispute confined to the correctness of an electricity bill is to be raised and resolved under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court will not interfere in writ when that alternative remedy is available, and will dismiss the petition with liberty to avail it. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL ON THE MERITS

The writ was dismissed solely because Clause 6.5 was available; no finding was recorded on the bill.